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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

LAW AND JUSTICE DIVISION

Islamabad, the 7th July, 2020

No. F. 2(1)/2020-Pub.—The following Ordinance Promulgated on 7th July, 2020 by the President is hereby published for general information:—

ORDINANCE No. VII OF 2020

AN

ORDINANCE

*further to amend the Public Procurement Regulatory Authority
Ordinance, 2002*

WHEREAS, it is expedient further to amend the Public Procurement Regulatory Authority Ordinance, 2002 (XXII of 2002), for the purposes hereinafter appearing;

AND WHEREAS the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

(425)

[5688(2020)/Ex Gaz.]

Price : Rs. 6.00

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of Islamic Republic of Pakistan, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. **Short title and commencement.**—(1) This Ordinance shall be called the Public Procurement Regulatory Authority (Amendment) Ordinance, 2020.

(2) It shall come into force at once.

2. **Amendment in long title, Ordinance XXII of 2002.**—In the Public Procurement Regulatory Authority Ordinance, 2002 (XXII of 2002), hereinafter called as the said Ordinance, in the long title, for the word “and” a comma shall be substituted and after the word “works”, the words “and disposal of public assets” shall be inserted.

3. **Amendment in preamble, Ordinance XXII of 2002.**—In the said Ordinance, in the preamble, in the first paragraph, for the word “and”, occurring for the first time, a comma shall be substituted and after the word “works”, the words “and disposal of public assets” shall be inserted.

4. **Amendment in section 2, Ordinance XXII of 2002.**—(1) In the said Ordinance, in section 2,—

(a) after clause (c), the following new clause shall be inserted, namely:—

“(ca) “disposal” means auction, rental, lease, donations, destruction and recycling of public assets or any combination thereof;”;

(b) for the clause (e), the following shall be substituted, namely:—

“(e) “goods” means articles and objects of every kind and description including raw materials, products, equipment, machinery, spares, scraps, waste material and commodities in any form and includes all types of assets such as immovable property, physical objects in any form or matter, intangible assets, goodwill, intellectual property and proprietary right, as well as service incidental thereto if the value of these services does not exceed the value of such goods;”;

(c) after clause (j), the following new clause shall be inserted, namely:—

“(ja) “public asset” means all types of goods owned and possessed by the procuring agency;” and

(d) for clause (1), the following shall be substituted, namely:—

“(1) “public procurement” means acquisition of goods, services or construction of any works financed wholly or partly out of the

public fund and includes disposal of public assets and commercial transactions between procuring agency and private party, in terms of which the private party is allowed to—

- (i) perform a procuring agency's assigned functions, including operations and management, on its behalf;
- (ii) assume the use of public asset; or
- (iii) receive a benefit either from budget or revenue of the Federal Government or from fees or charges to be collected by the private party for performing the procuring agency's function or any combination thereof;".

5. **Insertion of section 20A, Ordinance XXII of 2002.**—(1) In the said Ordinance, after section 20, the following new section 20A shall be inserted, namely:—

“20A.- **Mechanism for grievance redressal.**—The procuring agency shall, by rules and regulations made under this Ordinance, have a mechanism for grievance redressal of bidder during procurement.”.

DR. ARIF ALVI,
President.

MUHAMMAD KHASHIH-UR-REHMAN,
Secretary.

CORRIGENDUM

Islamabad, the 1st July, 2020

In the Companies (Amendment) Ordinance, 2020 (Ordinance No. V of 2020) in Section 43 “In the said Act, in section 172, in sub-section (2),__” read “In the said Act, in section 172, in sub-section (1),__”

AMER ASLAM,
Printing/Publication Officer.